

Art. 16 REE 1994. Confirming the principles of its established case law (cf. D.1/92, OJ 1993, 357, reported in this chapter V.C.2.6.3; see also D.4/99 above), the board held that differences of opinion over the number of marks to be awarded for a given answer were a reflection of value judgments which were not, in principle, subject to judicial review. And in D.3/00 (OJ 2003, 365), which concerned Paper D, the board held that a candidate was not per se entitled to claim the highest mark awarded by one of the examiners for each answer to a sub-question or sub-element.

In D.10/02 (OJ 2003, 275) the DBA noted that neither the REE 1994 nor its IPREE regulated the procedure to follow in the exceptional cases where a committee was unable to agree on the marking; nor did they provide for calling in an additional examiner. Hence the appointment of a third examiner without any basis in the REE 1994 or its IPREE had to be deemed a substantial procedural violation.

2.4.4 Marking the EQE answer papers fairly

The DBA has repeatedly invoked the principle of fair marking. In D.7/05 (OJ 2007, 378) the DBA deemed that details of the marking of Paper D include sufficient sub-division of the maximum achievable mark and the candidate's overall mark into sub-marks, and an indication of the substantive and legal issues for which those sub-marks were awarded. In producing schedules of marks there had to be a trade-off between their purpose of ensuring uniform marking (Art. 16 REE 1994) and the need also to allow for fair marking of answers which deviated from the scheme but were at least reasonable and competently substantiated. The schedules therefore had to leave some room for manoeuvre and – merely – be sufficiently detailed to constitute details of the marking within the meaning of R. 6(1) IPREE 1994 (cf. R. 4(1) IPREE) allowing candidates to verify, on the basis of the documents published or made accessible, whether the marking of their answers infringed marking principles the respect of which was subject to review by the DBA. See also in this chapter V.C.2.5. and e.g. D.11/07, D.23/08, D.8/12 and D.13/17.

D.6/07 and D.7/07 were among a number of appeal decisions concerning paper C. A large number of candidates had taken as the starting point for their attack on the claims a document which the examination committee did not consider to represent the closest prior art and had been awarded no points in this regard. The Examination Board took the view that, in keeping with long-standing practice, in this situation some credit should be given for properly drafted problem and solution approaches. Given the lateness of the proceedings and the impossibility of re-marking all the papers, it decided, as an exceptional measure, that the fairest option would be to award ten additional points (being the maximum number possible) to all candidates having sat the paper. The DBA held first that the awarding of no points by the examination committee infringed the requirements of R. 4(2) and (3) IPREE 1994: the "fit to practise" criterion required the examiners in marking the individual parts of a candidate's answers not to disregard their merit in the context of the whole answer paper (D.3/00, OJ 2003, 365) and the need to allow for the fair marking of answers which, although deviating from the marking scheme, were nonetheless reasonable and competently substantiated (D.7/05, OJ 2007, 378). The board further ruled that, under Art. 7(3) REE 1994, it fell to the Examination Board to award the grades "pass", "fail", or "compensable fail" and formally to decide whether the whole examination

had been passed or not. Its powers did not extend to the preceding marking of candidates' individual papers on a scale of zero to 100, and therefore the alteration of the marks awarded by the examination committee (in accordance with Art. 8(b) REE 1994 and R. 4(1) IPREE 1994) by the blanket addition of ten marks per paper had been *ultra vires*. The abstract awarding of marks without regard to the "fit to practise" criterion of R. 4 IPREE 1994 in the individual candidates' examination papers infringed the principle of objectivity as well as Art. 8(b) REE 1994 and R. 4 IPREE 1994. In conclusion, the DBA ordered a new marking of paper C of each appellant in accordance with R. 4 IPREE 1994, with the ten additional points already awarded to be retained by the appellant.

The candidate's different choice of the closest prior art from that of the examination committee was also in issue in D.14/17, D.20/17 and D.25/17. Referring to D.7/05 (OJ 2007, 378) and D.12/82 (OJ 1983, 233), the DBA again highlighted the examiners' obligation to allow for fair marking, which had its basis in the "fit to practise" criterion of Art. 1(1) REE.

In D.13/17 the DBA stressed that Paper A had a particular structure in that it was based on a single set of facts which meant that a wrong answer to one part was very likely to result in the other parts being wrongly answered too. That had to be taken into account when devising a marking scheme, as did the applicable regulatory requirements. In particular, R. 6(1) IPREE provided that each answer paper was to be marked on a scale from zero to 100; it said nothing about deducting marks. There was much to suggest that the marking had to start from zero, with marks then being awarded for each correct answer or partial answer and added up. Especially given Paper A's structure, a marking scheme that allowed more marks to be deducted overall than were achievable in total was essentially untenable if the requirement for fair marking established in the case law was to be met. A different conclusion could, if at all, be reached only if the possible deductions were not cumulative and instead applied to separate and mutually exclusive wrong or incomplete answers. With regard to the possibility that marks might be lost twice for a single mistake because, owing to Paper A's structure, a wrong answer to one part could have implications for the answer to another part, the board held that such a "double penalty" was not in keeping with the standards for fair marking set in the case law.

2.5. Substantiation of EQE decisions

At issue in D.12/97 (OJ 1999, 566) was whether EQE Examination Board decisions informing candidates that they have failed the examination have to be reasoned. The DBA pointed out that this was not required by the REE 1994. It also held the appellant's constitutional arguments - that substantiation of such decisions was a generally recognised principle of procedural law within the meaning of Art. 125 EPC 1973 - to be unfounded. For this to be so, it had to be shown that substantiation of such decisions was required in the EPC contracting states.

In D.3/03 the DBA confirmed D.12/97 (OJ 1999, 566). The REE 1994 neither required EQE decisions to be reasoned nor made reference to R. 68(2) EPC 1973 (cf. R. 111(2) EPC), which therefore did not apply. The Guidelines for Examination were not applicable for the same reasons. The REE and its IPREE were *lex specialis* for

the EPC; unless they expressly referred to the EPC, then only they and not the EPC applied. Their subsidiary nature was justified in that they governed a particular matter unrelated to the EPC *stricto sensu*, since their purpose was to establish whether a candidate was considered fit to practise as a professional representative before the EPO. With regard to the review by the courts of decisions concerning the EQE, the German Federal Constitutional Court had also held that the obligation to give reasons for examination decisions cannot be regarded as an expression of the structural elements of any protection of basic rights intended by the Basic Law (see decision 2 BvR 2368/99 of 4 April 2001).

This case law was again confirmed in D 7/05 (OJ 2007, 378). In its extensive reasoning the board also held that, apart from the fact that the marking sheets under R. 6(1) IPREE 1994 already had a decision substantiation function, the extent to which the principles of rule-of-law process also demanded individual substantiation of examination decisions could not be assessed without consideration of the extent of the board's powers of review under Art. 27(1) REE 1994. The absence of an obligation to provide individual substantiation was to be seen in connection with the fact that Examination Board decisions in EQE proceedings were subject to only limited judicial review (as to this see also in this chapter V.C.2.6.1 and V.C.2.6.3 below).

2.6. Appeals against decisions of the Examination Board and the Examination Secretariat

2.6.1 Competence of the Disciplinary Board of Appeal

Under Art. 24(1) REE (cf. Art. 27(1) REE 1994), an appeal lies from decisions of the Examination Board and the Secretariat only on grounds of infringement of the Regulation or of any provision relating to its application. On the extent of the DBA's competence to review decisions of the Examination Board see D 1/92 (OJ 1993, 357), D 6/92 (OJ 1993, 361) and the further decisions in this chapter V.C.2.6.3 (for the EQE) and V.C.2.6.4 (for the pre-examination); concerning decisions of the Secretariat, see e.g. D 1/13 and D 5/18. The DBA has only very limited scope for reviewing the legal validity of implementing provisions drawn up by the Administrative Council or, in the case of delegation, by the relevant subsidiary body. In D 3/89 (OJ 1991, 257) the board stated in justification of its limited powers of scrutiny that the relevant bodies had discretionary powers in drawing up such provisions. As long as the legislative organ and subsidiary bodies had not misused their discretionary powers, the DBA could apply the provisions concerning examinations only to the case in point (see also D 1/81, OJ 1982, 258, D 5/89, OJ 1991, 210, D 14/96, D 11/99, D 7/05, OJ 2007, 378 and D 11/19).

2.6.2 Procedural aspects

a) Requirements for appeal – payment of appeal fee

The notice of appeal, to be filed within one month from notification of the contested decision, must already include the statement setting out the grounds; the appeal fee is to be paid within the same period (Art. 24(2) REE).

In D.9/17 the DBA confirmed that the Rules relating to Fees applied, at least mutatis mutandis, to the payment of the fee for an appeal lodged under Art. 24(2) REE. This fee was to be paid by payment or transfer to a bank account held by the Office (Art. 5(1) REE); in particular, payment of the fees according to Art. 17 REE by debit order was not provided for in the Arrangements for deposit accounts.

b) Rectification of decisions

Under Art. 24(3) REE, if the Examination Board or the Secretariat considers the appeal to be admissible and well-founded it must rectify its decision and order reimbursement of the appeal fee. If the appeal is not allowed within two months of notification of the decision, it is remitted to the DBA.

In D.5/19 and D.8/19 the board pointed out that the Examination Board's powers of rectification under Art. 24(3) REE form an exception to the devolutive effect of an appeal. The term "well-founded" (German "begründet", French "fondé") refers to a situation in which the Examination Board considers that the reasons which it gave for a decision which is then appealed no longer hold in light of the appeal submissions, i.e. if the appeal removes the reasons underlying the contested decision, for example, if parts of the appellant's answers to a paper have been overlooked and not marked. In this context, "rectify" (German "abhelfen", French "faire droit") is to be understood as "correct" or "amend".

However, the brevity of the period under Art. 24(3) REE does not always allow the Examination Board to review the matter in full before it expires. To impose such a constraint can hardly have been the legislator's intention, and so it is reasonable to infer that, within the period for rectification, the Examination Board may also opt to set aside the contested decision (simple annulment) and resume the proceedings before it. If, on the other hand, the Examination Board considers the appeal to be either inadmissible or unfounded, it must refer the case to the DBA, as a rule without giving reasons, since such reasons would amount to a decision on the merits of the appeal. In summary, the Examination Board normally has the following options under Art. 24(3) REE: it can either annul the contested decision and replace or not replace it by a rectified decision, or refer the case to the DBA without giving reasons.

According to the board, this interpretation of Art. 24(3) REE was in line with the main purpose of interlocutory revision to shorten the appeal proceedings in the interests of procedural expediency and economy, which is to the benefit of both the appellant and the EPO. Moreover, if rectification is granted, unnecessary work is avoided for the DBA. Even though it entails resuming the administrative proceedings, the Examination Board can normally be expected to resolve the contentious issues more expediently by this means than on remittal after a full consideration of the appeal by the DBA. Given the limited powers of review accorded to the DBA under Art. 24(1) REE, a resumption of the proceedings before the Examination Board can even be to an appellant's advantage in the sense that - in contrast to the appeal procedure before the DBA - it allows a review of the entire examination procedure, including the re-marking of an appellant's answer to an examination question.

See also earlier cases D.38/05 of 17.01.2007 and D.4/06 on decisions of the Examination Board, D.3/18 and D.4/18 on decisions of the Secretariat, as well as D.3/14 in this chapter V.C.2.6.4 concerning the pre-examination.

c) Oral proceedings

Oral proceedings take place either at the instance of the disciplinary body if it considers this to be expedient or at the request of the party (Art. 13 RDR). In D.9/17, though the appellant had requested oral proceedings in relation to her main request, no such request had been filed with respect to the question raised in the board's communication on whether an appeal was deemed to have been filed (which turned on the question of valid payment of the appeal fee – see under a) above). Considering that the question whether an admissible appeal existed was to be examined by the appeal board ex officio, and the appellant had not availed herself of the opportunity which she had been given to comment on the reasons for the decision, the DBA did not consider oral proceedings to be expedient.

In D.11/19 the DBA refused the appellant's request that a German patent attorney be allowed to accompany him at the oral proceedings. The board observed that proceedings before the DBA were not public (Art. 24(4) REE in conjunction with Art. 20 RDR) and the right to attend oral proceedings was limited (Art. 24(4) REE combined with Art. 14 RDR): only other professional representatives or legal practitioners qualified to act as such in a contracting state were permitted to provide assistance (Art. 17 RDR). Professional representatives are familiar with the EQE and what it tests. They are also subject to a supranational set of rules based on Art. 134a EPC, which, in addition to professional rights and obligations, includes disciplinary supervision. Their legal status is similar to that of legal practitioners qualified in a contracting state. This ensures not only the confidentiality of the proceedings but also an orderly process.

2.6.3 Objective review of the marks awarded in the examination

In accordance with the DBA's consistent case law (see in particular D.1/92, OJ 1993, 357 and D.6/92, OJ 1993, 361), decisions of the Examination Board may in principle only be reviewed for the purposes of establishing that they do not infringe the REE, the provisions relating to its application or higher-ranking law. In D.1/92 and D.6/92, the DBA therefore concluded that its functions did **not** include reconsidering the examination procedure **on its merits**. Accordingly, the Examination Board's value judgment concerning the number of marks that an examination paper deserved was not subject to review by the board. Only if the appellant could show that the contested decision was based on serious and obvious mistakes could the board take this into account. The alleged mistake must be so obvious that it could be established without re-opening the entire marking procedure, for instance if an examiner was alleged to have based his evaluation on a technically or legally incorrect premise on which the contested decision rested. Any further claims regarding alleged defects in the assessment of candidates' work fell outside the DBA's jurisdiction, since value judgments were not subject to judicial review. These findings were confirmed in D.7/05 (OJ 2007, 378). See also, for example, D.9/00, D.7/01, D.11/01, D.11/07, D.14/08, D.23/08, D.5/13, D.11/18 and D.11/19.